RAMBAM'S LAWS OF REPENTANCE - HILCHOT TESHUVAH

The Love of Teshuvah & the Meaning of Karet

Hilchot Teshuvah Perakim 7–8

Sefer: Mishneh Torah, Hilchot Teshuvah (The Rambam's Laws of Repentance)

Chapters: 7 (complete) and the opening of Chapter 8

Shiur: Given by Dayan Daniel Kada on Zoom, Tuesday 26 November 2024

These notes are based on the Sofer.ai transcript of the recording.

Introduction

Chapter 7 is about **the love of teshuvah**, its beauty and power; the Rabbi went through it relatively quickly. The real focus was **Chapter 8**, "one of the most important chapters in the whole of the Mishneh Torah," where the Rambam lays out what **Olam HaBa** is.

People hear *Olam HaBa, Gan Eden, Gehinnom, Mashiach, Techiyat HaMetim, gilgulim*, even *kaf hakela*, "different snippets of the words of the Chachamim," but "the vast majority of Jewish people do not have a full framework of how all of these things tie in together." The Rambam provides one.

Where we are

Chapters	Topic
1–2	Teshuvah and viduy
3	A person's identity in relation to teshuvah
4	The five categories of impediments
5–6	Free will, and the verses that seem to deny it
7	**The love of teshuvah**
8	**Olam HaBa**

Chapter 7

Halacha 1: Repent, confess, and "shake off" sin

הואיל ורשות כל אדם נתונה לו כמו שביארנו, ישתדל אדם לעשות תשובה ולהתודות בפיו מחטאיו ולנער כפיו מחטאיו, כדי שימות והוא בעל תשובה ויזכה לחיי העולם הבא

Since every person has free will, as we explained, a person should strive to repent, confess his sins verbally and **shake his hands free** of his sins, so that he dies a *ba'al teshuvah* and merits the life of the World to Come.

A review of Chapters 1–2:

- **Teshuvah is personal**: leaving the sin in past, present and future, inside oneself.

- **Viduy is relational**: having fixed myself, I restore the relationship with Hashem, so it must be **spoken**. Like *todah* (thanks), from the same root: "you can't thank someone in your mind."

- **ולנער כפיו**, "shake off": the Rabbi thinks this stresses a firm, complete teshuvah, "not a wishy-washy teshuvah".

- **כדי שימות**, "so that he dies [a ba'al teshuvah]": teshuvah fixes, but **it cannot substitute for personal growth.** "People think: I've done teshuvah, I've done everything I need to do. It doesn't stop there".

Halacha 2: Don't wait

לעולם יראה אדם עצמו כאילו הוא נוטה למות... לפיכך ישוב מחטאיו מיד, ולא יאמר כשאזקין אשוב, שמא ימות טרם שיזקין. הוא ששלמה אמר בחכמתו: בכל עת יהיו בגדיך לבנים

A person should always see himself as close to death... so he should repent immediately and not say "when I'm old I'll repent," lest he die first. As Shlomo said: "At all times let your garments be white."

This paraphrases **Pirkei Avot**: **שוב יום אחד לפני מיתתך**, "repent one day before your death." The Gemara (Shabbat 153a): who knows the day of his death? So **every day** is that day.

"This isn't a morbid halacha... you never know how long you have." It applies to people too: "If you have forgiveness to ask from someone, don't leave it till next week... rectify it now."

Halacha 3: Teshuvah for character, not only actions

אל תאמר שאין תשובה אלא מעבירות שיש בהן מעשה... אלא כשם שצריך אדם לשוב מאלו, כך הוא צריך לחפש בדעות רעות שיש לו ולשוב מן הכעס ומן האיבה ומן הקנאה ומן ההתול ומרדיפת הממון והכבוד ומרדיפת המאכלות וכיוצא בהן... ואלו העוונות קשים מאותן שיש בהן מעשה

Don't say teshuvah is only for sins of action... one must also examine one's bad traits and repent of anger, hatred, jealousy, mockery, **the pursuit of money and honour, and the pursuit of food**... and these are harder than sins of action.

An action is an action: "I stole, I return it, I ask forgiveness." It doesn't define who you are. A **trait** is ingrained and habitual. As Yeshayahu says, **יעזוב רשע דרכו**: the wicked should abandon his *way*, his habits and character, not just his deeds.

The Rabbi's question

Anger, hatred and jealousy are forbidden or frowned upon in the sources. But **where does the Torah forbid pursuing money (legally), honour, or good restaurants every night?** Nowhere. So why must one do teshuvah for them?

Answer: teshuvah is not only about fixing transgressions. It is **a realignment of a person's values.** Notice the Rambam does **not** say *viduy* here: there is nothing to confess, no prohibition broken.

"Olam HaBa isn't just about doing the mitzvot and staying away from the aveirot. It's about a whole identity." You can tick every box and still not be a **ben Olam HaBa** in the full sense, someone able to grow in understanding of Hashem in the World to Come, a place of **intellectual and spiritual pleasure.**

This is not otherworldly: "it's important to enjoy this world… within the right parameters," not living "from one day to the next" to amass wealth, honour or the next meal.

A participant asked: is this like the Rambam on Talmud Torah, that you can't acquire the crown of Torah while focused on business? "Precisely." The Rambam reads the Talmud's **crowns** (the righteous sit in Olam HaBa "with crowns on their heads") as **intellectual refinement** in understanding the Divine. You can do everything right and still not win the *keter Torah*.

The Ramban on קדושים תהיו says the same: a person can be **נבל ברשות התורה**, a scoundrel *with the Torah's permission*, eating only kosher yet living for gluttony. "We have to get out of this concept that life is just about doing this and not doing that."

The same applies to **prophecy**: arrogance, anger and brazenness are not explicitly forbidden, yet they block spiritual growth.

Halacha 4: Where ba'alei teshuvah stand

אל ידמה אדם בעל תשובה שהוא מרוחק ממעלת הצדיקים… אין הדבר כן, אלא אהוב ונחמד הוא לפני הבורא כאילו לא חטא מעולם, ולא עוד אלא ששכרו הרבה, שהרי טעם טעם החטא ופירש ממנו וכבש יצרו. אמרו חכמים: מקום שבעלי תשובה עומדין, אין צדיקים גמורין יכולין לעמוד בו

A ba'al teshuvah should not imagine he is far from the level of the righteous… he is beloved as if he never sinned; moreover his reward is great, for he **tasted sin and left it and conquered his inclination.** The Sages said: in the place where ba'alei teshuvah stand, the completely righteous cannot stand.

Why follow Rabbi Abahu over his teacher?

In **Berachot 34b**, **Rabbi Yochanan** holds the lifelong righteous are higher; **Rabbi Abahu** holds ba'alei teshuvah are higher. Rabbi Yochanan was Rabbi Abahu's teacher, and normally we follow the teacher. Three explanations:

1. In **aggadah**, unlike halacha, the usual rules of decision don't bind.

2. The **Zohar** sides with Rabbi Abahu, and the Rambam supposedly knew it. "Clearly a misunderstanding of the Rambam's whole approach."

3. **The simplest**, from the Geonim and **Rav Kafich**, who checked it in **84 places** in Shas: when the Gemara says **ופליגא**, "and he disagrees with," **the earlier statement is not the halacha.** Here the Gemara says Rabbi Abahu's view *disagrees*, so the Rambam follows Rabbi Abahu.

What "the place" means

The Gemara and the Rambam both say **מקום**, a *place*. The Rambam, who usually rephrases, quotes it verbatim.

From **Shemonah Perakim, Chapter 6**: is it greater to *want* to sin and hold back, or not to want to at all?

Type of mitzvah	Higher level
Rational mitzvot (don't murder, honour parents)	Not wanting it at all. "I wish I could kill him, but Hashem said no" is not virtue; it is a defect. (Aristotle)
Revealed mitzvot (*mitzvot shim'iyot*, a term from Rav Saadiah), e.g. kashrut	Wanting it and **restraining yourself**. "I remember when I used to eat it, it's so delicious, but what can I do, Hashem told me not to" beats "pork disgusts me"

The ba'al teshuvah knows exactly what he is missing, so his restraint is greater. **But it is only a *place*:**

"People think: I've done teshuvah, so I'm on a greater level than a tzaddik. No. **You're in a place where you may be able to get to a greater level, but you're not yet there.** Teshuvah only does *sur me-ra*, it takes away the bad. You have a reservation."

Analogy: a pupil hospitalised through Years 10 and 11 misses GCSE Maths. Nobody blames him, but in Year 12 the teacher says, "I'm really sorry for what you've been through, but you can't do A-Level Maths without GCSE Maths." Teshuvah wipes the slate clean; it doesn't supply the growth you missed.

Halacha 5: Redemption through teshuvah

כל הנביאים כולן צוו על התשובה, ואין ישראל נגאלין אלא בתשובה, וכבר הבטיחה תורה שסוף ישראל לעשות תשובה בסוף גלותן ומיד הן נגאלין

All the prophets commanded teshuvah; Israel will only be redeemed through teshuvah; and the Torah has already promised that Israel will repent at the end of their exile and be redeemed at once.

The source is **Parashat Nitzavim**: **ושבת עד ה' אלהיך... ושב ה' אלהיך את שבותך** ("you will return to Hashem... and Hashem will return your captivity"), and **ובא לציון גואל ולשבי פשע ביעקב**.

	The Rambam	The Ramban
ושבת עד ה' אלהיך	A **promise**, a description of what will happen	A **commandment** to repent; one of the 613

As discussed in the first shiur in Elul, for the Rambam the only mitzvah is **viduy**; teshuvah itself is its prerequisite, not a separate commandment.

Halachot 6–7: From hated to beloved

גדולה תשובה שמקרבת את האדם לשכינה... אמש היה זה שנאוי לפני המקום, משוקץ ומרוחק ותועבה, והיום הוא אהוב ונחמד, קרוב וידיד

Great is teshuvah, which brings a person close to the Shechinah... Yesterday he was hated before God, detestable, distant, abominable; today he is beloved and desirable, near, a *yedid*.

אמש, "yesterday," in Rabbinic Hebrew means *previously*. Real teshuvah does not happen in a day.

ידיד: a commentator (perhaps the **Malbim**) reads it as **יד־יד**, "hand-hand," two people holding hands, like close friends or husband and wife.

- **Yechonyah (Coniah)**, the penultimate king before the destruction of the First Temple: Yirmeyahu says "write this man childless… even if Coniah were a **signet ring on My right hand**, I would tear him off." Later Chaggai says of his descendant Zerubavel, **ושמתיך כחותם**, "I will make you as a signet." The Midrash: in Babylonian prison, when his wife came to him to continue the Davidic line, he discovered she was *niddah* and held back. Hashem said: in Jerusalem you didn't keep these laws, in exile you do. The same imagery that pushed him away brings him back.

Halacha 7: separated, then attached. Hashem is everywhere, so what does "separated" mean? Loss of **hashgachah**, Divine providence: "as interested in you as in the number of animals out in the desert." He cries out and is not answered; his mitzvot are rejected (**מי ביקש זאת מידכם**, "who asked you to bring these?"). After teshuvah: **מודבק בשכינה, צועק ונענה מיד**, cleaving to the Shechinah, answered immediately, his mitzvot accepted with pleasure.

Halacha 8: The ba'al teshuvah's humility, and our duty

דרך בעלי תשובה להיות שפלים וענוים ביותר. אם חרפו אותן הכסילים במעשיהם הראשונים… שומעין ושמחים ויודעים שזו זכות להם… ועון גדול הוא לומר לבעל תשובה זכור מעשיך הראשונים

Ba'alei teshuvah are very humble. If fools taunt them about their past… they listen and rejoice, knowing it is a merit… And it is a great sin to say to a ba'al teshuvah, "remember your former deeds."

- "I remember you when you were a schoolboy, what you used to do…" The genuine ba'al teshuvah accepts it as part of his **tikkun**; the embarrassment is part of regret.
- The Gemara: **הנעלבין ואינן עולבין, שומעין חרפתן ואינן משיבין**, those insulted who do not insult back.

Two misused sayings

1. **"An insult is an auspicious time for prayer."** Some hear an insult and think, "now I can daven for anything!" That is "manipulation of what the Chachamim say." The Gemara means someone who **genuinely isn't hurt** because he has let go, not someone seething and biding his time.
2. **"Pray for your friend and you are answered first."** Today there are **WhatsApp groups** where people with the same problem swap names. "How are they both going to be answered first?" It means *genuinely* feeling another's pain as your own, "a really, really hard level," not a mechanical trick where you are really still praying for yourself.

Bringing up someone's past is *ona'at devarim*

It is forbidden to embarrass a ba'al teshuvah about his past. Likewise asking a **convert** "what was it like eating…?" is insensitive. It may not technically be a sin (it was before he was Jewish), but it is wrong and probably falls under **verbal abuse**.

Chapter 7 in summary

Halacha	Point
1–2	Repent and confess **now**; every day could be the last
3	Teshuvah covers **character** and values, even things not forbidden
4	Ba'alei teshuvah have a *place* above the righteous, a potential to be realised through good deeds
5	Redemption comes through teshuvah; the Torah *promises* it (Rambam)
6–7	Teshuvah changes identity: from distant and hated to beloved, answered and close
8	Ba'alei teshuvah bear insults humbly; we must never remind them of their past

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Chapter 8, Halacha 1: What Olam HaBa Is

A Spanish & Portuguese aside

The Rambam calls the reward **הטובה הצפונה לצדיקים**, "the good *hidden away* for the righteous," from **מה רב טובך אשר צפנת ליראיך**. In the Spanish & Portuguese *hashkavah* (memorial prayer, said for men), the usual opening is **טוב שם משמן טוב**. But for a person of special communal standing, a warden or *shamash* or someone who served the community, the verse **מה רב טובך אשר צפנת ליראיך** is added before it.

The definition

הטובה הצפונה לצדיקים היא חיי העולם הבא, והיא החיים שאין מות עמהן והטובה שאין עמה רעה. הוא שכתוב בתורה למען ייטב לך והארכת ימים: מפי השמועה למדו, למען ייטב לך לעולם שכולו טוב, והארכת ימים לעולם שכולו ארוך

The good hidden for the righteous is the life of the World to Come: life with no death and good with no evil. As the Torah says "that it may be good for you and you may prolong your days," which tradition explains: "good" in a world that is entirely good, "long" in a world that is entirely long.

Two features: only good, and everlasting. The reward of the righteous is to merit this pleasure.

The wicked: *pera'on*, not punishment

ופרעון הרשעים הוא שלא יזכו לחיים אלו, אלא יכרתו וימותו... נכרת ברשעו ואבד כבהמה. וזהו הכרת הכתוב בתורה: הכרת תכרת הנפש ההיא, מפי השמועה למדו: הכרת בעולם הזה, תכרת לעולם הבא

The *pera'on* of the wicked is that they do not merit this life but are cut off and die... cut off in his wickedness and **perishing like an animal**. This is the *karet* of the Torah: "cut off in this world, cut off from the World to Come."

".means **payment**, the consequence or return, "not punishment **פרעון**

Halacha 5 says the same: **הנקמה שאין נקמה גדולה ממנה שתכרת הנפש ולא תזכה לאותן החיים**, the greatest retribution is that the soul is cut off.

Why is Olam HaBa in Hilchot Teshuvah?

Why not in **Yesodei HaTorah**? Because the whole purpose of teshuvah is to bring a person close to Hashem, which **is** Olam HaBa. Having described how beloved teshuvah is (Chapter 7), it's natural to explain where it leads.

The question of karet

If the worst consequence is simply ceasing to exist, a person could live destructively for 120 years and simply stop. The **Ramban** was troubled by this; it isn't the traditional picture of the wicked suffering.

But **Chapter 3** of Hilchot Teshuvah says of those with no share in the World to Come: **נכרתים ואובדין ונדונין על גודל רשען וחטאתם לעולם ולעולמי עולמים**, cut off, lost, and **judged… forever**.

The Rabbi's understanding, which he thinks the **Ramchal** shared: the wicked person ceases to exist, **but an element of consciousness remains, aware of what it is missing, and that is eternal.** What it is like, "I've got no idea"; the Rambam himself says later in Chapter 8 that we can speak only in general terms.

Why would a benevolent God do that?

Gehinnom, which refines a person for a limited time so they can enjoy Olam HaBa, is purposeful. But **why leave a remnant aware of its loss, if it has no future anyway?** "A benevolent God… you don't do it, you miss out, finished."

Suggestions from the class:

- **"FOMO,"** a participant said: fear of missing out is one of the great anxieties of today's teenagers, and is itself the punishment.

- **"So you understand you did wrong."** The Rabbi: when I punish my child, it's so he does better *in the future*. Here there is no future.

- **"The soul could come back in another body."** "**Absolutely not.** Let's make that very clear." **The Rambam did not believe in *gilgul*** (reincarnation). It is not mentioned anywhere in Tanach or the Rabbinic literature, and **Rav Saadiah Gaon** (in *Emunot VeDeot*) calls believers in reincarnation **fools**, and those who think souls return as animals worse still. (Asked about other sources, the Rabbi agreed that "not everything in this world is the Rambam," but Tuesday nights are the Rambam's methodology.)

- **Doron:** it is less that God *actively* punishes and more that **the identity you built persists.** "What you've carved out of yourself… a purely negative identity… now will persist." Your actions don't stop at death; ending in nothingness would be a **clemency** the person hasn't earned. The Rabbi: "I want to think about that."

- **The Rabbi's addition:** one of the Rishonim writes that without fear of punishment there would be **no incentive**. If the worst outcome were "I enjoy 120 years and then nothing," why bother? The Rabbi noted this is "quite different" from Doron's point.

Provisional conclusion: for the Rambam the greatest punishment is that **you cease to exist**, but for that to be a punishment, some part of you must be aware of it.

Summary

1. **Chapter 7** is the love of teshuvah: do it now; do it for character and values, not just deeds; the ba'al teshuvah has a *place* above the righteous, to be earned through growth; redemption depends on it; it turns distance into closeness; and we must never shame anyone for their past.
2. **Chapter 8:1:** Olam HaBa is life **without death** and good **without evil**. The wicked are "paid" with **karet**, being cut off.
3. Chapter 3 suggests some awareness of loss remains, eternally. Why, and whether that is the identity a person built, remains open.
4. **No reincarnation** in the Rambam's (or Rav Saadiah's) thought.

Coming Up

Next week: the rest of Chapter 8, what Olam HaBa actually *is* in the Rambam's mind, and how it fits with **Gan Eden, Gehinnom, Techiyat HaMetim, Mashiach** and *mitah bidei shamayim*.

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